

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3301

By: Steagall

AS INTRODUCED

An Act relating to firearms; amending 21 O.S. 2021, Sections 1289.4, 1289.5, and 1289.18, as amended by Section 598, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1289.18), which relate to the Oklahoma Firearms Act of 1971; providing references to named act in certain definitions; deleting definitions; providing for the lawful ownership and possession of firearms under federal law; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1289.4, is amended to read as follows:

Section 1289.4.

DEFINITIONS FOR FIREARMS ACT

"Rifles" as used in the Oklahoma Firearms Act of 1971, ~~Sections 1289.1 through 1289.17 of this title~~ and the Oklahoma Self-Defense Act, shall mean any firearm capable of discharging a projectile composed of any material which may reasonably be expected to be able to cause lethal injury, with a barrel or barrels ~~more than sixteen~~

1 ~~(16) inches in length~~, and using either gunpowder, gas or any means  
2 of rocket propulsion, but not to include archery equipment, flare  
3 guns or underwater fishing guns. In addition, any rifle capable of  
4 firing "shot" but primarily designed to fire single projectiles will  
5 be regarded as a "rifle".

6 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1289.5, is  
7 amended to read as follows:

8 Section 1289.5.

9 DEFINITIONS FOR FIREARMS ACT

10 "Shotguns" as used in the Oklahoma Firearms Act of 1971 and the  
11 Oklahoma Self-Defense Act, shall mean any firearm capable of  
12 discharging a series of projectiles of any material which may  
13 reasonably be expected to be able to cause lethal injury, with a  
14 barrel or barrels ~~more than~~ eighteen (18) inches in length, and  
15 using a combustible propellant charge, but not to include any weapon  
16 so designed with a barrel less than eighteen (18) inches in length  
17 unless the overall length of the firearm is twenty-six (26) inches  
18 or more. In addition, any "shotgun" capable of firing single  
19 projectiles but primarily designed to fire multiple projectiles such  
20 as "shot" will be regarded as a "shotgun".

21 SECTION 3. AMENDATORY 21 O.S. 2021, Section 1289.18, as  
22 amended by Section 598, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
23 2025, Section 1289.18), is amended to read as follows:

24 Section 1289.18.

1 DEFINITIONS

2 A. ~~"Sawed-off shotgun" shall mean any firearm capable of~~  
3 ~~discharging a series of projectiles of any material which may~~  
4 ~~reasonably be expected to be able to cause lethal injury, with a~~  
5 ~~barrel or barrels less than eighteen (18) inches in length, and~~  
6 ~~using a combustible propellant charge, but does not include any~~  
7 ~~weapon so designed with a barrel less than eighteen (18) inches in~~  
8 ~~length, provided it has an overall length of twenty six (26) inches~~  
9 ~~or more.~~

10 B. ~~"Sawed-off rifle" shall mean any rifle having a barrel or~~  
11 ~~barrels of less than sixteen (16) inches in length or any weapon~~  
12 ~~made from a rifle (whether by alteration, modification, or~~  
13 ~~otherwise) if such a weapon as modified has an overall length of~~  
14 ~~less than twenty-six (26) inches in length, including the stock~~  
15 ~~portion.~~

16 C. ~~Every person who knowingly has in his possession or under~~  
17 ~~his immediate control a sawed-off shotgun or a sawed-off rifle,~~  
18 ~~whether concealed or not, shall upon conviction be guilty of a Class~~  
19 ~~D2 felony offense for the possession of such device, and shall be~~  
20 ~~punishable by a fine not to exceed One Thousand Dollars (\$1,000.00),~~  
21 ~~or imprisonment as provided for in subsections B through F of~~  
22 ~~Section 200 of this title, or both such fine and imprisonment.~~

23 D. ~~This section shall not apply~~ It shall be lawful to own or be  
24 in possession of any firearm that is lawfully possessed under

1 federal law or that is otherwise not regulated as a "firearm" or a  
2 "suppressor" pursuant to the National Firearms Act.

3 ~~E.~~ B. The term "firearm" as used in this section ~~and,~~ in the  
4 Oklahoma Firearms Act of 1971, and in the Oklahoma Self-Defense Act,  
5 shall not include an "antique firearm" as defined in 18 U.S.C.,  
6 Section 921 (2006).

7 SECTION 4. This act shall become effective November 1, 2026.

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